IN THE NATIONAL COMPANY LAW TRIBUNAL,
NEW DELHI COURT III

Item No.103
CAA-68(ND)/2022

IN THE MATTER OF:
M/s. Madhiapali Solar Pvt Ltd. AND Chinched Solar Pvt Ltd.

.....APPLICANT/PETITIONER

SECTION
U/s 230/232

Order delivered on 09.06.2022

CORAM:
SHRI BACHU VENKAT BALARAM DAS
MEMBER (JUDICIAL)

SHRI NARNEDER KUMAR BHOLA
MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Mr. Abhishek Nahta
For the Respondent :

ORDER

Mr. Abhishek Nahta, Practicing Chartered Accountant and Authorized Representative for all the Petitioner Companies is present. This is the second motion petition filed by these Petitioner Companies with respect to Scheme of Amalgamation under Section 230-232 of the Companies Act, 2013. In all, there are 5 Transferor Companies and one Transferee. The Authorized Representative submits that through the present application, the Petitioner Companies are seeking issuance of notice on all the statutory authorities i.e., Regional Director (Kolkata), Official Liquidator (Cuttack) , Registrar of Companies (Cuttack) and concerned Income Tax Authority as well as publication of public notice with regard to present Scheme of Amalgamation.

It is seen from the previous order that in this case, the Hon'ble Principal Bench has earlier passed orders with respect to transfer of the Amalgamation Petitions from NCLT, Kolkata Bench to this Bench at New Delhi.

After hearing the submissions made by the Authorized Representative, we order of issuance of notice to the said statutory authorities namely, Regional Director, Official Liquidator, Registrar of Companies and concerned Income Tax Authority to file their report in the matter.

Further, the Authorized Representative is directed to publish a public notice in two newspaper one in Urissa Post (English), and second in Udiya Express (Udiya

Edition) both published from Cuttack inviting objections, if any, with respect to Scheme of Amalgamation. As regards the Transferor Company which is based in Delhi, the notice shall be published in "Business Standard (English)" and "Business Standard (Hindi)" both published from Delhi.

In case of Transferee Company, the Authorized Representative is directed to serve a copy of the present application to the Regional Director (Northen Region of Delhi), Registrar of Companies, Delhi & Haryana and concerned jurisdictional Commissioner of Income Tax at Delhi. Let this be done within two weeks. List this matter after 45 days.

List the matter on **22.08.2022.**

-Sd-

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

Sd

(NARNEDER KUMAR BHOLA)
MEMBER (TECHNICAL)

SHAMMY
09.06.2022